

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alfredo Gonzalez	Team: Squad #03	CCRB Case #: 201710160	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Friday, 12/01/2017 11:30 PM	Location of Incident: In the vicinity of Nostrand Avenue and Montgomery Street; 71st Precinct stationhouse	18 Mo. SOL 6/1/2019	Precinct: 71
Date/Time CV Reported Sat, 12/02/2017 2:53 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 12/07/2017 11:38 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. LT William Diab	00000	940125	071 PCT
2. SGT Martin Cunningham	02115	946888	071 PCT
3. POM Frank Beers	17641	945498	071 PCT
4. POM Kevin Adair	15183	955706	071 PCT
5. POM Triston Trunk	16858	958131	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Triston Trunk	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Police Officer Triston Trunk stopped the vehicle in which § 87(2)(b) was an occupant.	A . Unsubstantiated
B . LT William Diab	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab stopped the vehicle in which § 87(2)(b) was an occupant.	B . Unsubstantiated
C . SGT Martin Cunningham	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Martin Cunningham stopped the vehicle in which § 87(2)(b) was an occupant.	C . Unsubstantiated
D . POM Frank Beers	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Frank Beers stopped the vehicle in which § 87(2)(b) was an occupant.	D . Unsubstantiated
E . LT William Diab	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab stopped an individual.	E . Victim Unidentified
F . SGT Martin Cunningham	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Sergeant Martin Cunningham stopped an individual.	F . Victim Unidentified
G . LT William Diab	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab frisked an individual.	G . Victim Unidentified
H . SGT Martin Cunningham	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Martin Cunningham frisked an individual.	H . Victim Unidentified
I . LT William Diab	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab searched an individual.	I . Victim Unidentified

Officer(s)	Allegation	Investigator Recommendation
J . SGT Martin Cunningham	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Sergeant Martin Cunningham searched an individual.	J . Victim Unidentified
K . LT William Diab	Discourtesy: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab spoke discourteously to an individual.	K . Victim Unidentified
L . LT William Diab	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab threatened to arrest an individual.	L . Victim Unidentified
M . POM Triston Trunk	Discourtesy: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Police Officer Triston Trunk spoke discourteously to § 87(2)(b)	M . Unsubstantiated
N . POM Triston Trunk	Abuse: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Police Officer Triston Trunk searched the vehicle in which § 87(2)(b) was an occupant.	N . Substantiated
O . LT William Diab	Discourtesy: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab spoke discourteously to § 87(2)(b)	O . Unsubstantiated
P . SGT Martin Cunningham	Abuse: At the 71st Precinct stationhouse, Sergeant Martin Cunningham threatened § 87(2)(b) with the use of force.	P . Unsubstantiated
Q . SGT Martin Cunningham	Abuse: At the 71st Precinct stationhouse, Sergeant Martin Cunningham strip-searched § 87(2)(b)	Q . Unsubstantiated
R . POM Triston Trunk	Abuse: At the 71st Precinct stationhouse, Police Officer Triston Trunk strip-searched § 87(2)(b)	R . Unsubstantiated
S . POM Kevin Adair	Abuse: At the 71st Precinct stationhouse, Police Officer Kevin Adair strip-searched § 87(2)(b)	S . Unsubstantiated
T . LT William Diab	Discourtesy: At the 71st Precinct stationhouse, Lieutenant William Diab spoke discourteously to § 87(2)(b)	T . Unfounded
U . POM Kevin Adair	Force: At the 71st Precinct stationhouse, Police Officer Kevin Adair used physical force against § 87(2)(b)	U . Unsubstantiated
V . POM Triston Trunk	Force: At the 71st Precinct stationhouse, Police Officer Triston Trunk used physical force against § 87(2)(b)	V . Unsubstantiated
W . LT William Diab	Force: At the 71st Precinct stationhouse, Lieutenant William Diab used physical force against § 87(2)(b)	W . Unsubstantiated
X . SGT Martin Cunningham	Force: At the 71st Precinct stationhouse, Sergeant Martin Cunningham used physical force against § 87(2)(b)	X . Unsubstantiated

Case Summary

Captain Andrew Tolson of the 67th Precinct reported this complaint to IAB, on behalf of § 87(2)(b) on December 2, 2017. The CCRB received this complaint, under log number 17-48354, on December 7, 2018. BWC footage was obtained, but it only captured a small portion of the incident and it did not capture any FADO allegations.

On December 1, 2017, at approximately 11:30 p.m., § 87(2)(b) was driving in a rental vehicle when he observed an unidentified male on the corner of Nostrand Avenue and Montgomery Street in Brooklyn, and subsequently stopped on the corner to speak with him. An unmarked vehicle then pulled up behind § 87(2)(b)'s vehicle, and four officers from the 71st Precinct – PO Tristan Trunk, Sgt. Martin Cunningham, PO Frank Beers, and Lt. William Diab – exited the vehicle and approached § 87(2)(b)'s vehicle. (**Allegations A – D: Abuse of Authority, unsubstantiated**). Sgt. Cunningham and Lt. Diab then allegedly approached the unidentified male, patted him down, and searched him (**Allegations E – J: Abuse of Authority, victim unidentified**). The unidentified male asked the officers what was happening, to which Lt. Diab allegedly responded, “You just get the fuck out of here,” and, “Either leave now or we’ll arrest you” (**Allegation K: Discourtesy, victim unidentified; Allegation L: Abuse of Authority, victim unidentified**). PO Trunk then approached the driver’s side of § 87(2)(b)'s vehicle and allegedly told him to “shut the fuck up” after § 87(2)(b) asked him a question. PO Trunk also allegedly told § 87(2)(b) to “get the fuck out of the car” (**Allegation M: Discourtesy, unsubstantiated**).

§ 87(2)(b) exited and walked towards the back of his vehicle, after which PO Trunk entered and began searching § 87(2)(b)'s vehicle (**Allegation N: Abuse of Authority, substantiated**). § 87(2)(b) asked repeatedly why his vehicle was being searched, to which Lt. Diab allegedly responded with multiple discourteous statements (**Allegation O: Discourtesy, unsubstantiated**). § 87(2)(b) was then placed under arrest and transported to the 71st Precinct stationhouse.

At the 71st Precinct stationhouse, inside a cell, § 87(2)(b) was commanded to stand up so he could remove his shoes, but § 87(2)(b) refused and Sgt. Cunningham, in response, allegedly threatened to use a Taser against him (**Allegation P: Abuse of Authority, unsubstantiated**). Afterward, PO Trunk and PO Adair took § 87(2)(b) to a bathroom directly across from the cell and conducted a strip-search, authorized by Sgt. Cunningham, in which PO Trunk and PO Adair allegedly made physical contact with § 87(2)(b)'s genitals and buttocks (**Allegations Q - S: Abuse of Authority, unsubstantiated**). During this time, Lt. Diab allegedly told § 87(2)(b) who was asking questions, to “shut the fuck up” (**Allegation T: Discourtesy, unfounded**).

§ 87(2)(b) was then taken to a holding cell, where PO Trunk proceeded to allegedly punch § 87(2)(b) in his upper lip and on the right side of his chin. § 87(2)(b) was then taken to the floor, during which Lt. Diab allegedly placed his foot on § 87(2)(b)'s head and applied pressure so that he would not move. PO Adair and Sgt. Cunningham also allegedly punched § 87(2)(b)'s sides and placed their knees against his ribs (**Allegations U - X: Force, unsubstantiated**). § 87(2)(b) was ultimately charged with § 87(2)(b)

§ 87(2)(b) was also transported to § 87(2)(g), where he was treated for a laceration to his lip.

Findings and Recommendations

Allegation (A) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Police Officer Tristan Trunk stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diabs stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Sergeant Martin Cunningham stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (D) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Sergeant Martin Cunningham stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) stated that he was in a rental vehicle after having just flown into LaGuardia Airport in Queens from Atlanta, Georgia, with his girlfriend. After dropping her off near Crown Street and Franklin Avenue in Brooklyn, § 87(2)(b) proceeded towards his home. § 87(2)(b) was driving southbound on Nostrand Avenue when he observed his friend walking near the intersection of Nostrand Avenue and Montgomery Street. § 87(2)(b) shouted to his friend and then stopped his vehicle on the corner of Nostrand Avenue and Montgomery Street. Prior to stopping to speak to his friend, § 87(2)(b) did not commit any VTL violations; he had not sped, gone past any red lights, or “zigzagged” around any vehicles. When § 87(2)(b) first called out to his friend, his friend leaned over to see who was calling him. The friend then approached the vehicle and leaned at an angle so that he could see § 87(2)(b). His friend did not touch the vehicle, break the plane of § 87(2)(b)'s vehicle, nor did they exchange any physical greetings or exchange any items between themselves. § 87(2)(b) was speaking to his friend for approximately three minutes, after which an unmarked police vehicle pulled up behind § 87(2)(b) without its lights on. § 87(2)(b) did not pay attention to the vehicle because he did not believe it was related to what he was doing. Four officers then exited the unmarked vehicle and approached the driver's side and § 87(2)(b)'s friend.

§ 87(2)(b) refused to identify his friend or to provide any contact information for him. There was no NYPD documentation available to aid in identifying the male.)

PO Trunk, the driver of the unmarked police vehicle, stated that he pulled § 87(2)(b) over after observing him commit several violations. PO Trunk first observed § 87(2)(b) speeding while § 87(2)(b) was traveling northbound on New York Avenue, near Montgomery Street. PO Trunk's vehicle was on Montgomery Street at the time. PO Trunk then began pursuing him and turned on his police lights. § 87(2)(b) continued and turned left onto Crown Street, bypassing a red light. § 87(2)(b) continued to speed and almost “flew over” a speed bump in the middle of the street, which almost caused him to strike some parked vehicles. § 87(2)(b) then turned left onto Nostrand Avenue and bypassed a few vehicles. PO Trunk momentarily lost sight of § 87(2)(b) when § 87(2)(b) turned left onto Nostrand Avenue. As PO Trunk turned onto Nostrand Avenue, § 87(2)(b)'s vehicle was still in motion but was pulling over to the corner at Nostrand Avenue and Montgomery Street. By the time that PO Trunk caught up to § 87(2)(b)'s vehicle, he observed a male standing on the corner, who subsequently approached § 87(2)(b)'s vehicle with a “crumpled up” \$20 bill in his right hand and engaged in “what appeared to be a hand-to-hand transaction” through the passenger side window. PO Trunk observed the money from three to four car lengths

away. PO Trunk later clarified that the money was actually folded in the male's hand, but PO Trunk could not recall specifically how the male was holding the money. PO Trunk observed the money being exchanged, but he did not observe any items being exchanged for the money. PO Trunk added that he believed that a drug transaction had occurred, with § 87(2)(b) as the seller. The unidentified male then walked away as soon as the officers pulled up behind § 87(2)(b)'s vehicle. PO Trunk noted that he has had approximately 100 drug arrests over three and half years on the job, including hand-to-hand transactions. He also noted that Montgomery Street and Nostrand Avenue is a "high narcotic-prone location" and a "high gang-prone location" that generates a lot of 311 and 911 calls, though he could not estimate how many calls he had personally been involved in.

§ 87(2)(g)
PO Beers, who was seated in the back-passenger seat, stated that after § 87(2)(b) pulled over on the corner of Nostrand Avenue and Montgomery Street, an unidentified male approached the passenger's side of § 87(2)(b)'s vehicle. During that time, officers activated the vehicle's lights to conduct a car stop. PO Beers noted that their vehicle was pulling up behind § 87(2)(b) and was a couple car length's behind, as the male was approaching § 87(2)(b)'s vehicle. The male reached toward § 87(2)(b) with his hand in a ball or a fist, into § 87(2)(b)'s vehicle through the front passenger window, as if to give § 87(2)(b) something. § 87(2)(b) reached towards the male's hand, but then officers put the lights on and § 87(2)(b) made a motion towards the center console or the driver's seat area near the center console. During this time, the unidentified male also stepped back away from the vehicle. PO Beers did not observe § 87(2)(b)'s hands make contact with the unidentified male's hand. PO Beers was unable to see any object in the male's hands. PO Beers noted that he "perceived that it was going to be a hand-to-hand," but the officers arrived "before they could do the exchange." PO Beers noted that he has been assigned to the 71st Precinct for nine and half years, during which he has had approximately 350 drug-related arrests. He received specific training related to narcotic sales in public when he was assigned to the Street Narcotics Enforcement Unit (SNEU) for four years. He stated that the incident location was not specifically known for being a drug-prone area.

Lt. Diab, who was seated in the front passenger seat, § 87(2)(g) stated that the first infraction observed from § 87(2)(b) occurred when he sped on Crown Street, while driving towards Nostrand Avenue, but he did not mention that § 87(2)(b) went past a steady red light. Lt. Diab also noted that the police vehicle's lights were not turned on during the pursuit. Lt. Diab also asserted that he observed the unidentified male with folded currency cupped in his hand, as if he was going to give § 87(2)(b) a handshake, and that § 87(2)(b) took the money, but Lt. Diab did not observe any other items being exchanged. Lt. Diab stated that § 87(2)(b) was pulled over for the perceived hand-to-hand exchange and for the reckless driving. Lt. Diab has been an officer for 12 years and spent two years working for Brooklyn North Narcotics. He noted that the area around the incident location is a drug-prone location where marijuana and crack are sold, as well as a gang-prone location. He added that they receive several 311 and 911 calls and has responded to the area "many times" in the past regarding drugs, but he could not recall specifically how many times.

Sgt. Cunningham, who was seated behind the driver's seat, § 87(2)(g) could not recall the police vehicle's exact location when § 87(2)(b) was first observed speeding, but he stated that their vehicle was directly behind § 87(2)(b)'s vehicle when § 87(2)(b) was observed traveling at a high rate of speed. After going past the steady red light, PO Trunk began pursuing

§ 87(2)(b) and activated the vehicle's lights. Sgt. Cunningham also explained that the police vehicle was pulling up behind § 87(2)(b)'s vehicle as the unidentified male was giving § 87(2)(b) money. Sgt. Cunningham could not tell the amount of currency nor specify its dimensions, but he knew it was currency because it was green and folded. Sgt. Cunningham specified that the male reached into § 87(2)(b)'s vehicle and that § 87(2)(b) grabbed onto the money. Sgt. Cunningham did not see any objects being exchanged for the currency. Sgt. Cunningham has been working in the 71st Precinct for one and a half years and has had over 20 arrests for narcotics over those years. Sgt. Cunningham also described the area as being drug-prone and that they receive 911 calls regarding narcotics in that area.

Reckless driving shall mean driving or using any motor vehicle, motorcycle or any other vehicle propelled by any power other than muscular power or any appliance or accessory thereof in a manner which unreasonably interferes with the free and proper use of the public highway, or unreasonably endangers users of the public highway. Reckless driving is prohibited. Every person violating this provision shall be guilty of a misdemeanor. Vehicle and Traffic Law, §1212 (BR 01).

An officer may stop a vehicle when he or she has probable cause to believe that the driver of the vehicle has committed a traffic violation, regardless of their intention after the stop. People v. Robinson, 97 N.Y.2d 341 (2001) (BR 02).

Probable cause that a drug transaction has taken place can arise from the totality of circumstances, including the exchange of currency for a packaged narcotic, whether the "particular community" has a high rate of drug trafficking, the police officer's experience and training in drug investigations, and any "additional evidence of furtive or evasive behavior on the part of the participants." People v. McRay, 51 N.Y.2d 594 (1980) (BR 03).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A – D** be unsubstantiated.

Allegation (E) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab stopped § 87(2)(b)

Allegation (F) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Sergeant Martin Cunningham stopped § 87(2)(b)

Allegation (G) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab frisked § 87(2)(b)

Allegation (H) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Sergeant Martin Cunningham frisked § 87(2)(b)

Allegation (I) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab searched § 87(2)(b)

Allegation (J) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Sergeant Martin Cunningham searched § 87(2)(b)

Allegation (K) Discourtesy: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab spoke discourteously to § 87(2)(b)

Allegation (L) Abuse of Authority: Lieutenant William Diab threatened to arrest

§ 87(2)(b)

§ 87(2)(b) alleged that after Lt. Diab and Sgt. Cunningham exited their vehicle, they approached the unidentified male, grabbed him, and then patted the male down. Sgt. Cunningham and Lt. Diab also allegedly entered the male's pockets. At some point, the male told the officers that he wanted to know what was happening, to which Lt. Diab allegedly responded, "You just get the fuck out of here," and, "Either leave now your we'll arrest you." The male then departed. § 87(2)(b) refused to identify his friend or to provide any contact information for him. There was no NYPD documentation available to aid in identifying § 87(2)(b)'s friend.)

Lt. Diab stated that he approached the passenger's side, at which point the unidentified male "froze" and appeared "very nervous." Lt. Diab asked the male what was happening and if he knew § 87(2)(b) to which the male answered that § 87(2)(b) was his friend and that they were going to play basketball. At this point, § 87(2)(b) became agitated and Lt. Diab focused his attention on § 87(2)(b). When Lt. Diab turned back towards the male, he realized that he was no longer there, and assumed that he walked away as Lt. Diab was focusing on § 87(2)(b). Lt. Diab denied that he stopped, patted down, searched, threatened with arrest, or spoke discourteously to the male, and he did not observe any other officer do so.

Sgt. Cunningham stated that the male walked away as officers approached the vehicle and that no attempts were made to stop him because § 87(2)(b) was behaving aggressively, so the officers' attention was focused on him. Sgt. Cunningham denied that he stopped, patted down, searched, threatened with arrest, or spoke discourteously to the male, and he did not observe any other officer do so. PO Beers and PO Trunk did not observe any officer interact with the unidentified male and denied the allegations made on the male's behalf.

§ 87(2)(g)

Therefore, it is recommended that **Allegations E – L** be closed as **victim unidentified**.

Allegation (M) Discourtesy: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Police Officer Tristan Trunk spoke discourteously to § 87(2)(b)

Allegation (N) Abuse of Authority: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Police Officer Tristan Trunk searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) alleged that PO Trunk approached his vehicle and asked to see his license, to which § 87(2)(b) asked why he needed to see his license. PO Trunk then allegedly stated, “Shut the fuck up. Give me your license.” After providing his license, PO Trunk allegedly told him to “get out of the fucking car.” § 87(2)(b) asked PO Trunk why he had to exit, and PO Trunk allegedly responded, “Just shut up and get the fuck out of the car.” PO Trunk then opened the vehicle’s door and PO Beers pulled § 87(2)(b) out of the vehicle and escorted him to the back of § 87(2)(b)’s vehicle. After he was removed from the vehicle and taken to the back, PO Trunk entered § 87(2)(b)’s vehicle through the driver’s side, and with one knee on the driver’s seat, began searching the vehicle. PO Trunk allegedly opened and searched the glove compartment and the center console, and he utilized his flashlight to look at the floor and the side panels of the vehicle. § 87(2)(b) was not asked any questions regarding having any weapons or narcotics.

PO Trunk stated that he had a clear view into § 87(2)(b)’s vehicle as he approached the driver’s side. PO Trunk did not observe anything in § 87(2)(b)’s hands once he approached the driver’s side window, but § 87(2)(b) was moving around in his seat and § 87(2)(b) appeared nervous and was “making a lot of movements.” PO Trunk did not know if § 87(2)(b) was reaching for his pockets or the center console. § 87(2)(b) did not look back at PO Trunk as PO Trunk approached the driver’s side. PO Trunk did not recall if he observed § 87(2)(b)’s hands enter any of his pockets. PO Trunk approached the driver’s side and asked § 87(2)(b) to lower his window, but § 87(2)(b) did not initially comply. PO Trunk then requested § 87(2)(b)’s license, but he refused to provide it. § 87(2)(b) continued to refuse, so PO Trunk opened the vehicle’s door, removed § 87(2)(b) from the vehicle, and walked him to the trunk area. PO Trunk denied that he told § 87(2)(b) to “shut the fuck up” or to “get out of the fucking car,” and he denied speaking discourteously to him. After § 87(2)(b) was removed from his vehicle, he was taken towards the back of the vehicle and the other officers stood with him in the back. PO Trunk then searched the vehicle for any weapons or contraband. PO Trunk noted that § 87(2)(b) was considered to be under arrest the moment that his vehicle was stopped for § 87(2)(b), but he was also considered under arrest for § 87(2)(b) after he refused to open the door and comply with a lawful order. § 87(2)(b) was not yet in handcuffs when PO Trunk started searching the vehicle. PO Trunk searched for weapons in the grabbable or lunge-able areas of the vehicle, which included the driver’s seat, the passenger’s seat, and the rear seats of the vehicle. PO Trunk believed that it was possible that there was a weapon in the vehicle because § 87(2)(b) was making “a lot of furtive movements” and because he was “very nervous.” PO Trunk added that § 87(2)(b) was “moving around a lot” as he initially approached the vehicle and he did not know if § 87(2)(b) had discarded something. PO Trunk did not find any contraband during the search. PO Trunk noted that he was mainly searching for weapons, based on § 87(2)(b)’s movements. PO Trunk did not receive any instructions from the supervisors on the scene to search the vehicle.

§ 87(2)(g)
PO Beers was still in the police vehicle when he observed § 87(2)(b) make motions towards the center console; the other officers were in the process of exiting the vehicle. PO Beers only observed § 87(2)(b)’s arm make a movement as § 87(2)(b)’s body was turned towards the male. PO

Beers was not able to see the center console from his vantage point inside of the vehicle, and he did not see whether § 87(2)(b) opened any compartments during that action. § 87(2)(b) did not make any other movements. Based on his training and experience, PO Beers believed that § 87(2)(b)'s movement was indicative of him trying to conceal drugs. PO Beers did not have any reason to believe that § 87(2)(b) was concealing a weapon when he made that movement, and PO Trunk never mentioned that he believed § 87(2)(b) may have been concealing a weapon.

§ 87(2)(g)
Sgt. Cunningham observed § 87(2)(b) reach down towards the vehicle as if he was “stuffing something” and “making furtive movements” towards the center console and underneath his seat. Sgt. Cunningham added that it appeared that § 87(2)(b) was “reaching down” towards the center console first and then towards the seat area. Sgt. Cunningham noted that he could tell that § 87(2)(b) also reached underneath his seat because he observed § 87(2)(b) shoulders lean forward and his head was looking down towards the floor. Based on Sgt. Cunningham’s training and experience, § 87(2)(b)'s action was indicative of him “stashing a weapon.” When asked whether he knew why PO Trunk had asked § 87(2)(b) to exit the vehicle, Sgt. Cunningham stated that PO Trunk asked § 87(2)(b) to exit because of the furtive movements he made; PO Trunk informed Sgt. Cunningham of his reasoning and also looked back towards Sgt. Cunningham and told him that he was going to take § 87(2)(b) out of the vehicle. Sgt. Cunningham stood with § 87(2)(b) in the back of the vehicle while PO Trunk searched the areas where he saw § 87(2)(b) make furtive movements. Sgt. Cunningham did not observe any bulges on § 87(2)(b) indicative of a weapon.

Lt. Diab did not recall if a search of § 87(2)(b)'s vehicle was conducted for contraband, and he did not approve such a search. PO Beers’ BWC footage was played for Lt. Diab that showed § 87(2)(b) asking why his vehicle was being searched before he was in handcuffs, which refreshed his recollection that the vehicle was searched at that scene of arrest, but Lt. Diab did not know for what reason the vehicle was searched and stated that if PO Trunk was searching the vehicle, PO Trunk “must have” seen something or smelled something. At the time of the incident, PO Trunk did not discuss his observations that led to the search of the vehicle. Lt. Diab did not see where PO Trunk searched the vehicle as his focus was on § 87(2)(b). Lt. Diab did not observe anything that would have justified the search of § 87(2)(b)'s vehicle; however, he emphasized that he did not know what PO Trunk had observed.



201710160_20181105_1050_DM.mp4

(BR 04)

This section of PO Beers’ BWC footage shows PO Trunk on the lower left-hand side of the screen searching § 87(2)(b)'s vehicle. At the 00:06 mark, an officer (identified by the investigation as PO Trunk) comes into view from the lower left-hand side of the screen, ostensibly in the area where § 87(2)(b)'s vehicle should be located, on the passenger side (the vehicle is not shown). Afterward, the sound of what appears to be a car door being closed is heard. At the 00:10 mark, PO Trunk’s upper torso moves down and out of the frame. At the end of the video, the sound of a car door being closed can be heard again.

The courts have found that the combination of movements within a car suggesting that the defendant was reaching for something that might be a weapon and “some other suggestive

factor(s)” are sufficient to justify the limited intrusion of searching the area where the defendant’s movements took place. People v. Newman, 96 A.D.3d 34 (2012) (BR 05).

Police are authorized to search a vehicle incident to a recent occupant’s arrest only when the arrestee is unsecured and within reaching distance of the passenger compartment at the time of the search, or when an officer reasonably believes that evidence of the offense of arrest might be found in the vehicle. If there is no possibility that an arrestee could reach into the area that law enforcement officers seek to search, both justifications for the search incident-to-arrest exception are absent and the rule does not apply. Arizona v. Gant, 556 U.S. 332 (2009) (BR 06).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation N** be substantiated.

§ 87(2)(g)

Therefore, it is recommended that **Allegation M** be unsubstantiated.

Allegation (O) Discourtesy: In the vicinity of Nostrand Avenue and Montgomery Street in Brooklyn, Lieutenant William Diab spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that after PO Trunk began searching his vehicle, he asked the officers, six or seven times, why his vehicle was being searched, after which Lt. Diab allegedly told him to “shut the fuck up” and that he would be arrested for disorderly conduct if he made things any more difficult. § 87(2)(b) continued to ask the officers why his vehicle was being searched, but he was repeatedly told to shut up. At one point, Lt. Diab allegedly stated to § 87(2)(b) “I’ll make it

bad for you. You think I'm fucking with you? I'll arrest your fucking ass right now." § 87(2)(b) then asked why he was being arrested, and Lt. Diab told him he was being arrested for disorderly conduct. Lt. Diab also allegedly added, "Because I told you to shut the fuck up and you think I'm playing with you." Afterwards, § 87(2)(b) was placed in handcuffs without any issues.

Lt. Diab stated that after § 87(2)(b) was near the back of the vehicle, he began asking § 87(2)(b) some questions – though he could not recall what questions specifically. During this time, § 87(2)(b) was non-compliant, "aggressive," and began tensing his body. Specifically, § 87(2)(b) flexed his arms in front of him and had his hands in a fist around his waist area. § 87(2)(b) was also using profanity and yelling. Initially, Lt. Diab stated that he could not recall if § 87(2)(b) made any threats of physical violence, but he later recalled that § 87(2)(b) stated, "I'd fuck you up." Based on the above, Lt. Diab believed that "violence was imminent." § 87(2)(b)'s behavior also drew a crowd. Lt. Diab noted that the officers did not feel safe, so § 87(2)(b) was handcuffed and transported to the stationhouse. Lt. Diab denied that he spoke discourteously to § 87(2)(b) during this interaction. Sgt. Cunningham, PO Beers, and PO Trunk denied that Lt. Diab spoke discourteously to § 87(2)(b).



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(BR 07)

PO Beers' BWC footage, which starts recording approximately one minute and thirty seconds before § 87(2)(b) is placed in handcuffs, does not capture any of Lt. Diab's alleged discourtesies. The video also does not capture § 87(2)(b) exhibiting the behavior described by Lt. Diab, as § 87(2)(b) is only asking why his vehicle is being searched. Portions of the sidewalk closest to scene of arrest are also captured in the video, but it does not show a crowd gathered in the area.

§ 87(2)(g)

§ 87(2)(b)

it is recommended that **Allegation O** be **unsubstantiated**.

Allegation (P) Abuse of Authority: At the 71st Precinct stationhouse, Sergeant Martin Cunningham threatened § 87(2)(b) with the use of a Taser.

§ 87(2)(b) alleged that, while sitting inside the holding cell (before he was strip-searched) he was commanded to remove his shoes. § 87(2)(b) was unable to comply because he was still rear-cuffed at the time. He was then commanded to stand up, but he refused to do so and asked why he had been arrested. Sgt. Cunningham then allegedly removed his Taser, pointed it at § 87(2)(b) and stated, "If you don't get up I'm going to tase you." Additional officers then entered the cell and physically raised § 87(2)(b) up from his seat.

Sgt. Cunningham was equipped with a Taser on the date of this incident, but he denied drawing his Taser and he denied threatening to use it against § 87(2)(b) PO Trunk and PO Adair also denied that Sgt. Cunningham removed his Taser and that he threatened to use it against § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that **Allegation P** be **unsubstantiated**.

Allegation (Q) Abuse of Authority: At the 71st Precinct stationhouse, Police Officer Tristan Trunk strip-searched § 87(2)(b)

Allegation (R) Abuse of Authority: At the 71st Precinct stationhouse, Police Officer Kevin Adair strip-searched § 87(2)(b)

Allegation (S) Abuse of Authority: At the 71st Precinct stationhouse, Sergeant Martin Cunningham strip-searched § 87(2)(b)

Allegation (T) Discourtesy: At the 71st Precinct stationhouse, Lieutenant William Diab spoke discourteously to § 87(2)(b)

Upon arrival to the stationhouse, PO Beers presented § 87(2)(b) to the front desk and proceeded to search § 87(2)(b). § 87(2)(b) noted that he was angry while at the front desk and stated numerous times that he should not have been arrested. Eventually, the desk officer instructed officers to take § 87(2)(b) to the cells. While at the front desk, there was no discussion regarding whether § 87(2)(b) had any narcotics on his person and there was no discussion about a strip-search. Approximately two minutes after being taken to the cells, § 87(2)(b) was taken to a bathroom directly in front of the cell and his pants and underwear were pulled down to his ankles. PO Trunk then allegedly “opened § 87(2)(b)’s ass cheeks” and PO Adair allegedly “lifted up” § 87(2)(b)’s penis and testicles. While this was occurring, § 87(2)(b) was “squirming and fidgeting,” and asking the officers why he was being strip-searched, to which Lt. Diab allegedly responded by telling him to “shut the fuck up.” Afterward, the officers lifted up his underwear and pants and placed him back into the same cell.

PO Beers stated that he escorted § 87(2)(b) into the stationhouse, during which § 87(2)(b) made threats to him and told him to let go of him and to stop “manhandling” him. In front of the desk, PO Beers began doing an inventory search of § 87(2)(b)’s property, but § 87(2)(b) was uncooperative. PO Beers managed to search § 87(2)(b)’s pants’ pockets and his wallet, but he was unable to complete the search in front of the desk because § 87(2)(b) turned toward PO Beer and spat on him. Immediately after, other officers escorted § 87(2)(b) to the holding cell area. PO Beers did not have any further interaction with § 87(2)(b) after he was escorted away as he went to the hospital for treatment for the spit.

PO Trunk stated that observed § 87(2)(b) at the front desk, § 87(2)(g). When PO Trunk went to the holding cell area, he attempted to search § 87(2)(b) in front of the cell, but § 87(2)(b) began tensing his body and “clenching his butt cheeks together.” PO Trunk then requested permission from Sgt. Cunningham to strip-search § 87(2)(b) because he “kept clenching his body up” and would not allow officers to search him. PO Trunk emphasized that § 87(2)(b) was “clenching his butt cheeks together,” and that it is known “for crack dealers to do that.” PO Trunk noted in his memo book that § 87(2)(b) was a “known crack dealer.” When asked about that entry, PO Trunk stated that he obtained that information after § 87(2)(b)’s name was checked for past arrests. PO Trunk did not recall whether he had knowledge of these past arrests before the strip-search was requested and conducted. PO Trunk

believed that § 87(2)(b) was hiding contraband on his person because § 87(2)(b) did not allow officers to conduct a preliminary search, he did not remove his shoes or shoe laces, and he tensed his body with his arms to his side. PO Trunk added that § 87(2)(b) was clenching his body and moving around a lot and stated that officers were not going to search him. Sgt. Cunningham, who was looking through the glass into the holding cell area, observed § 87(2)(b)'s actions and authorized the strip-search. § 87(2)(b) was taken to a private bathroom across the cell in which he was being housed. PO Trunk noted that § 87(2)(b) was non-compliant during the strip-search and refused to remove his clothing, so PO Trunk "took his clothes off" and "helped him pull them down." PO Trunk added that § 87(2)(b) "was a big guy," so they were not "going too crazy with [the strip-search]. Afterward, PO Trunk pulled § 87(2)(b)'s pants and underwear down, he did not observe any contraband or weapons. PO Trunk denied that he, or any other officer, made physical contact with § 87(2)(b)'s genitals or buttocks during the strip-search.

§ 87(2)(g)
PO Adair was inside the stationhouse when § 87(2)(b) entered and witnessed his interaction with PO Beers. PO Adair escorted § 87(2)(b) to the holding cell area, and afterward, he and PO Trunk attempted to search him, but § 87(2)(b) was uncooperative by moving around. PO Adair noted that Sgt. Cunningham informed PO Adair that § 87(2)(b) was a known crack dealer before he was strip-searched, after which Sgt. Cunningham commanded PO Adair and PO Trunk to conduct a strip-search. PO Adair added that it appeared that § 87(2)(b) was attempting to hide something because he was not allowing officers to search him, but § 87(2)(b) did not make any movements towards his genitals or buttocks. PO Adair denied that he, or any other officer, made physical contact with § 87(2)(b)'s genitals or buttocks during the strip-search.

Sgt. Cunningham stated that upon entry to the stationhouse, he did not observe § 87(2)(b) at the front desk. PO Beers informed Sgt. Cunningham that § 87(2)(b) had spat on him, but he did not mention whether the search in front of the desk was successful. Sgt. Cunningham proceeded to the holding cell area. At this time, § 87(2)(b) was under arrest for the VTL violations, disorderly conduct, and for obstruction of governmental administration. In the holding cell area, PO Trunk and PO Adair were attempting to thoroughly search § 87(2)(b) who was in a cell, but § 87(2)(b) was being uncooperative. The officers told Sgt. Cunningham that they believed § 87(2)(b) had something because he was also making movements towards his groin area, at which point Sgt. Cunningham authorized a strip-search. Sgt. Cunningham noted that he was outside of the holding cell area and observed § 87(2)(b) who was not in handcuffs at the time, through a window on the door. § 87(2)(b) prevented the officers from searching him by moving his body and stepping back as officers attempted to search him. § 87(2)(b) was also adjusting his pants in his groin area, during which § 87(2)(b) made contact with his groin. Based on these observations, as well as the perceived drug transaction that Sgt. Cunningham believed he had witnessed earlier, provided permission for officers to strip-search § 87(2)(b). Initially, Sgt. Cunningham stated that § 87(2)(b)'s past drug arrests factored into his decision to approve a strip-search, but he later clarified that it did not factor in his decision because the search of § 87(2)(b)'s past arrests occurred after § 87(2)(b) had already been strip-searched. Sgt. Cunningham denied that PO Trunk or PO Adair made physical contact with § 87(2)(b)'s genitals or buttocks during the strip-search.

Lt. Diab denied being present when § 87(2)(b)'s strip-search was conducted, and he denied telling § 87(2)(b) to "shut the fuck up" at any point during their interaction inside the stationhouse. All of the other officers who acknowledged being in the holding cell area denied that any officer spoke discourteously to § 87(2)(b).



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(BR 08)

PO Beers' BWC footage captured § 87(2)(b)'s behavior in front of the desk. Though it is difficult to discern specific movements based on the camera's proximity to § 87(2)(b) the footage shows § 87(2)(b) being physically resistant to PO Beers search in front of the desk. At the 02:57 mark, § 87(2)(b) becomes agitated, makes profane statements towards PO Beers, and makes movements towards PO Beers. At the 03:15 mark, it appears that § 87(2)(b) spits towards PO Beers, after which officers escort § 87(2)(b) to the cells.

A strip-search may only be conducted when the arresting officer reasonably suspects that weapons, contraband, or evidence may be concealed upon the person or in the clothing in such a manner that they may not be discovered by the previous search methods. It should not be necessary to touch the subject's body, except for the examination of the hair. NYPD Patrol Guide, Section 208-05 (BR 09).

§ 87(2)(g)

Therefore, it is recommended that **Allegations Q – S** be **unsubstantiated**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation T** be **unfounded**.

Allegation (U) Force: At the 71st Precinct stationhouse, Police Officer Tristan Trunk used physical force against § 87(2)(b)

Allegation (V) Force: At the 71st Precinct stationhouse, Police Officer Kevin Adair used physical force against § 87(2)(b)

Allegation (W) Force: At the 71st Precinct stationhouse, Lieutenant William Diab used physical force against § 87(2)(b)

Allegation (X) Force: At the 71st Precinct stationhouse, Sergeant Martin Cunningham used physical force against § 87(2)(b)

§ 87(2)(b) alleged that after he was strip-searched, his shoes were removed and he was placed inside of a cell. Lt. Diab then allegedly stated, “Hit him, hit him. He’s not cooperating.” PO Trunk then proceeded to strike § 87(2)(b) with a closed fist, in his upper left lip. PO Trunk struck § 87(2)(b) with a closed fist, with his left hand, on the right side of § 87(2)(b)’s chin. § 87(2)(b) then started bleeding from his nose, after which officers turned him around and held him against a wall. Officers then “swept” § 87(2)(b)’s feet and he was taken to the floor. After § 87(2)(b) was taken to the floor, Lt. Diab allegedly placed his foot on the right side of § 87(2)(b)’s face and applied pressure. During this time, § 87(2)(b) acknowledged that he was “fidgiting,” moving his body around, and “fighting” the officers and telling them to “get the hell off.” § 87(2)(b) also alleged that PO Adair had his knee against his side, and that he was kicked on his legs and his sides by officers who he could not see. § 87(2)(b) also alleged that PO Beers and PO Adair punched him on his sides. Afterward, § 87(2)(b) remained on the floor and was coughing, bleeding, and could feel that his lip was split. § 87(2)(b) requested medical attention from an unidentified uniformed officer after the other officers had left the cell area, and § 87(2)(b) was transported to § 87(2)(b), § 87(2)(b).

PO Adair stated that he after the strip-search, § 87(2)(b) was brought into a cell directly in front of the bathroom and removed the handcuffs. § 87(2)(b) then started shaking the cells and stated, “Fuck you. I’m going to sue you,” and subsequently spat on PO Adair’s face and stated, “Fuck you, § 87(2)(b).” PO Adair then opened the cell door and attempted to handcuff § 87(2)(b). PO Adair explained that he entered the cell and placed § 87(2)(b) in handcuffs to prevent him from shaking the cell doors because prisoners have broken the cell door in that manner in the past. After entering the cell, PO Adair attempted to handcuff § 87(2)(b) but § 87(2)(b) resisted by refusing to give up his arms and by not listening to PO Adair’s commands to stop resisting. PO Adair then took § 87(2)(b) to the floor by “tackling him.” § 87(2)(b) did not make contact with any objects when he went to the floor. Afterward, § 87(2)(b) continued to resist by moving his arms to prevent PO Adair from handcuffing him. § 87(2)(b) did not do anything else physically to resist besides moving his arms. PO Trunk assisted in handcuffing § 87(2)(b). After § 87(2)(b) was handcuffed, PO Adair did not observe any injuries on § 87(2)(b). PO Adair added that he was more worried about himself since § 87(2)(b) had spat on his face, so left the cell area immediately after § 87(2)(b) was in handcuffs. PO Adair denied that he, or any other officer, punched § 87(2)(b) in the face, and he denied placing his foot on § 87(2)(b)’s face after he was on the floor, punching § 87(2)(b) on his sides, or kneeling § 87(2)(b) on his sides. He did not observe any other officer do so.

PO Trunk stated that § 87(2)(b) was placed into a cell, but he still had his shoes on. § 87(2)(b) began kicking the cell door, which prevented officers from closing it. Officers also asked § 87(2)(b) to remove his shoes, but he refused. § 87(2)(b) continued kicking at the door and was “spitting everywhere.” § 87(2)(b) also stated, “§ 87(2)(b).” During this time, § 87(2)(b) either pushed or punched PO Adair, after which PO Adair grabbed § 87(2)(b) and

they both went to the floor. PO Trunk did not assist, and he did not know exactly how § 87(2)(b) went to the floor. Afterward, PO Trunk assisted PO Adair by removing § 87(2)(b)'s shoes. § 87(2)(b) was not doing anything while on the floor, but PO Adair was holding him down to make sure he did not attempt to fight them. As soon as PO Trunk removed his shoes, the officers closed the cell door. § 87(2)(b) continued spitting. At some point, PO Adair was spat on, but PO Trunk could not recall specifically how it occurred. PO Trunk did not observe any injuries on § 87(2)(b) after the cell door was closed. PO Trunk denied that he, or any other officer, punched § 87(2)(b) in the face. He also denied that he, or any other officer, punched or kneed § 87(2)(b) on his sides or stepped on his face. PO Trunk learned later that § 87(2)(b) was transported to the hospital for a cut to his lip, but PO Trunk did not know how he received it.

§ 87(2)(g)
Sgt. Cunningham stated that § 87(2)(b) was asked to remove his shoes and his shoe laces, but § 87(2)(b) refused. PO Adair and PO Trunk then entered the cell and attempted to place § 87(2)(b) in handcuffs, but § 87(2)(b) started "fighting" the officers inside of the cell by moving his hands, tensing his body, and not giving up his hands. PO Trunk and PO Adair took § 87(2)(b) to the floor and restrained him. Sgt. Cunningham remained outside the cell and did not physically interact with § 87(2)(b). Sgt. Cunningham denied that § 87(2)(b) was thrown to the floor, and stated that § 87(2)(b) got in his knees on his own, after which officers made him prone on the floor. Sgt. Cunningham noted that later, while completing paperwork for § 87(2)(b)'s arrest, he observed that § 87(2)(b) was bleeding from laceration to his lip; he did not know how § 87(2)(b) sustained the injury. Sgt. Cunningham denied that any officer used the physical force described by § 87(2)(b).

Lt. Diab stated that when he arrived to the holding cell area, § 87(2)(b) was being handcuffed by PO Adair and PO Trunk, who were grabbing § 87(2)(b)'s arms to get him to comply. The officers eventually handcuffed § 87(2)(b) and did not use any other type of force besides grabbing his arms. Afterward, § 87(2)(b) was placed inside the cell. Lt. Diab did not observe any injuries on § 87(2)(b) but was later informed by another officer of § 87(2)(b)'s laceration. Lt. Diab denied that he, or any other officer, used any of the force described by § 87(2)(b).

PO Beers did not have any further interaction with § 87(2)(b) after he was spat on in front of the desk because he went to the hospital for treatment.

§ 87(2)(a) PHL § 18(6)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. NY Patrol Guide, Section 221-01 (BR 12).

§ 87(2)(g)
§ 87(2)(b)
§ 87(2)(b)

§ 87(2)(g)

Therefore, it is recommended that **Allegations U – X be unsubstantiated.**

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to four CCRB complaints and has been named as a victim in nine allegations (BR 13):
 - § 87(2)(b)
 -
 -
 -
- PO Adair has been a member-of-service for four years and has been a subject in two CCRB complaints and two allegations, none of which were substantiated.
- PO Trunk has been a member-of-service for three years and has been a subject in three CCRB complaints and eight allegations, none of which were substantiated.
 - PO Trunk currently has four other open CCRB complaints.
- PO Beers has been a member-of-service for 10 years and has been a subject in six CCRB complaints and 15 allegations, none of which were substantiated.
- Sgt. Cunningham has been a member-of-service for 10 years and has been a subject in four CCRB complaints and six allegations.
 - In CCRB 201404897, a question allegation was substantiated. The CCRB recommended formalized training, which was affirmed by the NYPD.
- Lt. Diab has been a member-of-service for 12 years and has been a subject in 11 CCRB complaints and 18 allegations.
 - In CCRB 200718446, allegations of a stop and a gun drawn were closed as Subject Terminated.
 - In CCRB 200800389, allegations of force and discourtesy were substantiated and elevated to charges, for which he lost 35 vacation days.
 - In CCRB 201507839, a stop allegation was substantiated, for which the CCRB recommended formalized training. The NYPD has not yet imposed discipline.
 - Lt. Diab currently has four other open CCRB complaints.
- § 87(2)(g)

- This case was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with the City of New York and claimed the following: false arrest; battery; illegal search; unlawful imprisonment; malicious prosecution; negligence; gross negligence; negligent screening, hiring, training, retention, and supervision; negligent infliction of emotional distress; intentional infliction of emotional distress; prima facie tort; violations of NYC Local Law 71 Int. No. 2010 (2013) prohibiting bias-based profiling, and violations and deprivations of the claimant's rights under the 4th and 14th Amendment of the United States Constitution and the New York Constitution. § 87(2)(b) seeks monetary redress for injuries, damages for deprivation of liberty, physical, emotional and psychological injuries, and punitive damages (BR 14).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Investigator:	Signature	Print Title & Name	Date
Squad Leader:	Signature	Print Title & Name	Date
Reviewer:	Signature	Print Title & Name	Date